

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: August 17, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to *see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR197289	BETTS REVOCABLE TRUST, dated November 6, 1984	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			

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Case Name: BETTS REVOCABLE TRUST, dated November 6, 1984

Case No.: 24PR197289

INTRODUCTION

Married couple Roy William Betts (“Roy”) and Ikeda Yamada Betts (“Ikeda”)¹ executed the Betts Revocable Trust in 1984. After Roy’s death, Ikeda amended the trust to make her caregiver, Roberto Aguilar (“Respondent”) a beneficiary. This case arises from a petition filed by Roy’s son and Ikeda’s stepson, Russell John Betts (“Petitioner”) to invalidate Ikeda’s amendment based on incapacity and undue influence and to remove Respondent as trustee. Respondent filed an opposition to the petition. Respondent passed away intestate on October 30, 2025. Currently before the court is a motion by Angel Castro (“Castro”), personal representative for Respondent’s estate, to substitute into the action in place of Respondent. The motion is unopposed.

DISCUSSION**I. Legal Background**

“On motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent’s personal representative or, to the extent provided by statute, against the decedent’s successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made.” (Code Civ. Proc., § 377.41.)

II. Merits of the Motion

Castro, Respondent’s nephew, sought and received appointment as personal representative for Respondent’s estate in docket 26PR201983. (See Declaration of Angel Castro in Support of Motion, ¶¶ 4-5.) Castro seeks to substitute in as respondent in this action. In support of his motion, he has provided Decedent’s death certificate and a copy of the letters of administration showing his appointment as personal representative. (See *id.*, Exs. A&B.)

Here, although Castro does not address this point, Petitioner’s petition does not seek a money judgment against Respondent; it seeks invalidation of the trust amendment executed by Ikeda and removal of Respondent as trustee. Accordingly, compliance with the creditor claims requirement is inapplicable. Additionally, the court finds that the claim for invalidation of the amendment does not abate with the death of the respondent, another point Castro does not address. (See Code Civ. Proc., § 377.20 [“Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person’s death, but survives subject to the applicable limitations period.”].) Because at least one claim in this action survives Respondent’s death and Castro, as the personal representative is the person with authority to substitute in for Respondent, the motion is GRANTED.

CONCLUSION

The motion is GRANTED.

¹ Some of the individuals share the same last name, the court uses first names. No disrespect is intended.